

2.	2024-1380763 Arellano vs. General Motors, LLC	The motion by Plaintiff Salvador Arellano (“Plaintiff”) for attorneys’ fees and costs is granted. The Court exercises its discretion to consider Plaintiff’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Civil Code section 1794, subdivision (d) provides as follows: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” There is no dispute that Plaintiff is the prevailing party and entitled to recover Plaintiff’s costs, including fees, pursuant to section 1794, subdivision (d). The court has broad authority to determine the amount of reasonable fees. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) The Court may make its determination of the value of the services rendered without the necessity of expert testimony. (<i>Id.</i> at 1096.) In making its determination, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and any other circumstances in the case. (<i>Id.</i>) The party seeking an award of fees is not necessarily entitled to compensation for the value of attorney services according to his own notion or to the full extent claimed by him. (<i>Levy v. Toyota Motors Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 815-816.) The moving party instead has the burden of showing that the fees sought were allowable, reasonably necessary to the conduct of the litigation, and reasonable in amount. (<i>Id.</i>, at 816.) Courts apply a lodestar method to calculate reasonable attorneys’ fees. (<i>Meister v. U.C. Regents</i> (1998) 67 Cal.App.4th 437, 448-449.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25.) A reasonable fee is determined in the trial court’s discretion. (<i>PLCM Group</i>, 22 Cal.4th at 1095.) To determine reasonable attorneys’ fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney’s efforts, the intricacies and importance of the litigation,
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the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (*Church of Scientology v. Wollersheim* (1996) 42 Cal.App.4th 628, 659.)

McKenzie v. Ford Motor Company (2015) 238 Cal.App.4th 695, 703 provides:

“The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are *reasonably* incurred—both from the standpoint of time spent and the amount charged.... ‘It requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.’ ... [The] prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount.” (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 817–818, 50 Cal.Rptr.3d 731.)

The fees incurred in preparing a motion for fees are properly includable in the award. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, 104 Cal.Rptr.2d 377, 17 P.3d 735 [“an attorney fee award should ordinarily include compensation for *all* the hours *reasonably spent*, including those relating solely to the fee”].) (*Id.*)

A reasonable hourly rate reflects the skill and experience of the lawyer, including any relevant areas of particular expertise, and the nature of the work performed. (*Hensley v. Eckerhart* (1983) 461 U.S. 424, 433-434.)

The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. (*PLCM Group*, 22 Cal.4th at 1094.) This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represented the client on a straight

	contingent fee basis, or are in house counsel. (<i>Id.</i> [emphasis added].) “Affidavits of the Plaintiff’s attorney and other attorneys regarding prevailing fees in the community, and rate determinations in other cases, particularly those setting a rate for the Plaintiff’s attorneys are satisfactory evidence of the prevailing market rate.” (<i>United Steelworkers of America v. Phelps Dodge Corp.</i> (9th Cir. 1990) 896 F.2d 403, 407.) Defendant did not object to Plaintiff’s requested hourly rates. The Court finds the requested hourly rates of \$350 to \$695 are reasonable. In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>) Additionally, moving party’s counsel’s verified time records should be “entitled to credence in the absence of a clear indication the records are erroneous.” (<i>Horsford v. Board of Trustees</i> (2005) 132 Cal.App.4th 359, 396.) However, the Court “may not rubber stamp a request for attorney fees, but must determine the number of hours <i>reasonably</i> expended.” (<i>Donahue v. Donahue</i> (2010) 182 Cal.App.4th 259, 271.) Plaintiff submitted Plaintiff’s attorneys’ time entries to support Plaintiff’s request, which Plaintiff’s counsel contends he reviewed for accuracy and voluntarily reduced. (Barry Decl., ¶¶ 17-20, Exhibit 4.) Based on the Court’s review of the papers submitted in support and in opposition to this motion, the procedural history of this case, and the time entries Defendant put at issue, the Court finds that Plaintiff reasonably incurred \$33,354.50 in attorneys’ fees. The Court declines to award a multiplier. Defendant contends Plaintiff’s requested costs should be reduced. However, Defendant did not file a motion to tax or strike costs. “Delay (or failure) to challenge a costs bill waives any objection to the costs claimed thereon.” (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th
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		287, 290.) In addition, Defendant’s request is untimely. (Cal. Rules of Ct., Rule 3.1700(b).) Defendant’s request is denied. Plaintiff’s motion for fees is granted. Plaintiff is awarded \$33,354.50 in attorneys’ fees and \$2,246.28 in costs. Plaintiff shall give notice.
3.	2024-1403454 Giziotis vs. Volkswagen Group of America, Inc.	Trial motions to be ruled on at a later date.
4.	2024-1412353 Mitchell vs. Carrasco	Case Management Conference, only.
5.	2025-1529277 National Funding, Inc. vs. Golden Construction, LLC	Plaintiff National Funding, Inc.’s motion for summary judgment on its complaint for breach of contract against defendants Charles Sanders and Golden Construction, LLC is denied. Defendant’s evidentiary objection to para. 3 and Ex. 2 of the Muren Declaration is sustained on hearsay grounds. The parties’ remaining objections are all overruled. <u>Legal Standard</u> Under Code of Civil Procedure section 437, a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1). “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” <i>Id.</i> For summary adjudication of a claim of damages, other than punitive damages, that does not entirely dispose of a cause action, defense, or issue of duty the parties must comply with Code of Civil Procedure section 437c(s)(1). A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal. 4th 826, 850. “A prima facie showing is one that is